

- (b) any order made or direction given by the Secretary of State under the said section thirty-two and in force at the passing of this Act shall be deemed to have been made or given by the Minister and shall continue in force accordingly.

Ships and Aircraft (Transfer Restriction) Act, 1939.

2 & 3 Geo 6.
c. 70.

In subsection (1) of section three, subsection (4) of section six, section seven, subsection (4) of section eight and section nine for the references to the Secretary of State there shall be substituted references to the Minister, and any arrangements under the said section nine made by the Secretary of State and in force at the passing of this Act shall be deemed to have been made by the Minister and shall continue in force accordingly.

CHAPTER 22.

An Act to provide, during twelve months, for the discipline and regulation of the Army and the Air Force.

[25th April 1945.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of such number as His Majesty may deem necessary :

And whereas under the Air Force (Constitution) Act, 1917, 7 & 8 Geo. 5 His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of such number as His Majesty may deem necessary :

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or be sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow:

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and forty-five on the following days:—

- (a) In Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1945.

Army Act
and Air
Force Act
to be in
force for
specified
times.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say:—

- (a) Within Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, nineteen hundred and forty-five, to the thirtieth day of April, nineteen hundred and forty-six, both inclusive; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, nineteen hundred and forty-five, to the thirty-first day of July, nineteen hundred and forty-six, both inclusive.

22 & 23
Geo. 5. c. 22.

(2) Notwithstanding anything in subsection (1) of section fifteen of the Army and Air Force (Annual) Act, 1932, the amendments of the Army Act and the Air Force Act made by this Act shall come into operation in all places as from the thirtieth day of April, nineteen hundred and forty-five.

(3) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

AMENDMENTS OF THE ARMY ACT APPLICABLE ALSO (SUBJECT TO MODIFICATIONS) TO THE AIR FORCE ACT.

3. In section one hundred and fifty-three of the Army Act (which provides for the punishment of persons who induce or assist officers or soldiers to desert or to absent themselves without leave, or who conceal such deserters or absentees) for the words from "shall be liable" to the end of the section there shall be substituted the words "shall be liable, on summary conviction, to imprisonment for a term not exceeding six months or to a fine not exceeding thirty pounds." Amendment of Army Act, s. 153.

4. In subsection (1) of section one hundred and sixty-three of the Army Act (which relates to documentary evidence) after the words "by the officer" wherever those words occur in paragraphs (a), (g) and (h), and after the words "or the officer" where those words occur in paragraph (b) of the subsection, there shall be inserted the words "or record officer"; and at the end of subsection (2) of that section there shall be added the words "and the expression 'record officer' means a person appointed as such by the Army Council or by any officer authorised in that behalf by the Army Council; and for the purposes of paragraph (g) of subsection (1) of this section a record made by a record officer in pursuance of his duty as such shall be deemed to be made in pursuance of military duty." Amendment of Army Act, s. 163.

5. References in sections three and four of this Act to the Army Act shall be deemed to include references to the Air Force Act, and the provisions of those sections shall, in their application to the Air Force Act, have effect subject to any of the general modifications set out in Part I of the Second Schedule to the Air Force (Constitution) Act, 1917, which apply. Application of sections 3 and 4 to Air Force Act.

CHAPTER 23.

An Act to extend the powers of the Treasury to raise money under section one of the National Loans Act, 1939, and to extend the powers of trustees of trustee savings banks to invest in securities issued to them under that Act moneys received by them in respect of special investments. [30th May 1945.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects the Commons of the United Kingdom in Parliament